



CHAPTER xli.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to North Berwick Burgh Extension. A.D. 1926.
[15th July 1926.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the North Berwick Burgh Extension Order Confirmation Act 1926. Short title.

A.D. 1926.

S C H E D U L E.

NORTH BERWICK BURGH EXTENSION.

Provisional Order to extend the boundaries of the burgh of North Berwick and for other purposes.

WHEREAS the provost magistrates and councillors of the royal burgh of North Berwick (hereinafter called "the Town Council") are the municipal and local authority within the burgh of North Berwick (hereinafter called "the existing burgh") and are charged with the administration and management thereof:

And whereas the land available for the erection of houses within the existing burgh is limited and land suitable and convenient for the erection of houses is available within the district (situate in the parish of North Berwick) lying contiguous and adjacent to the existing burgh and by this Order annexed to the existing burgh (which district is hereinafter referred to as "the district annexed"):

And whereas the Town Council supply water within the existing burgh and the district annexed:

And whereas it is expedient that the compulsory limits of the Town Council for the supply of water should be extended to include the district annexed and that the Town Council should be the sole authority for the supply of water in the extended burgh all as hereinafter provided:

And whereas the Town Council are the commissioners under the Burghs Gas Supply (Scotland) Acts 1876 and 1918:

And whereas from their gasworks the Town Council supply gas within the existing burgh and the district annexed:

And whereas the supply of water and gas by the Town Council to and within the district annexed has most materially assisted the development of the district annexed: A.D. 1926.
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And whereas by virtue and in pursuance of the North Berwick Electricity Special Order 1925 the Town Council have become the authorised undertakers for the supply of electricity within the existing burgh and it is expedient that the area of the Town Council for the supply of electricity should be extended to include the district annexed:

And whereas in the preparation by the Town Council of a town planning scheme under the provisions of the Town Planning (Scotland) Act 1925 it is desirable to include land outwith the existing burgh and it is expedient for the purpose of such a scheme that the district annexed should be included within the boundaries of the burgh:

And whereas the district annexed can be efficiently and conveniently administered by the Town Council and it is expedient and in the public interest that the municipal and local administration of the existing burgh and the district annexed should be under one authority:

And whereas it is expedient that the boundaries of the existing burgh should be extended as by this Order provided and that all franchises rights privileges and immunities of and pertaining to the existing burgh and the powers and jurisdictions of the Town Council and all other powers and jurisdictions applicable within the existing burgh should be extended to and be applicable within the existing burgh as extended by this Order and to the inhabitants thereof:

And whereas for the purposes of such extension it is expedient that subject to the provisions of this Order the district annexed should be separated and disjoined for the purposes of this Order from the county of East Lothian and that subject to the said provisions all matters of administration and management and all jurisdictions powers functions and authorities within the district annexed including the maintenance and management of the roads and streets should devolve upon and be vested in the Town Council:

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Extension Order Confirmation Act, 1926.

A.D. 1926. And whereas it is expedient that the other provisions
— in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title
and com-
mencement
of Order.

1. This Order may be cited for all purposes as the North Berwick Burgh Extension Order 1926 and shall come into operation on the date of the passing of the Act confirming the same (except as otherwise expressly provided) which date is hereinafter referred to as “the commencement of this Order.”

Interpreta-
tion.

2. In this Order unless there be something in the subject or context inconsistent with or repugnant to such construction :—

(a) The several words and expressions to which meanings are assigned by any public or local Act of Parliament or Order applicable within the existing burgh shall subject to the provisions of this Order have the same respective meanings ;
and

(b) The following expressions shall in this Order have the meanings respectively assigned to them in this section (that is to say) :—

“The existing burgh” means the burgh of North Berwick within the limits and boundaries thereof existing immediately previous to the commencement of this Order ;

“The burgh” means the burgh of North Berwick as extended by this Order ;

“The district annexed” means the area annexed to the existing burgh by this Order ;

“The Town Council” means the provost magistrates and councillors of the existing burgh or of the burgh as the case may be ;

“The magistrates” means the magistrates of the existing burgh or of the burgh as the case may be; A.D. 1926.
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“The Dean of Guild Court” means the Dean of Guild Court of the existing burgh or of the burgh as the case may be;

“The town clerk” means the town clerk of the existing burgh or of the burgh as the case may be and includes any deputy acting for him;

“The county” means the county of East Lothian;

“The county council” means the county council of the county and includes any district committee thereof;

“The sheriff” means the sheriff of the Lothians and Peebles and includes any of his substitutes in the county;

“The sheriff clerk” means the sheriff clerk of the county;

“The Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1911 and any Acts amending or extending the same;

“The Town Councils Acts” means the Town Councils (Scotland) Acts 1900 to 1923;

“The Public Health Acts” means the Public Health (Scotland) Acts 1897 to 1907 and any Acts amending or extending the same.

3. From and after the fifteenth day of May one thousand nine hundred and twenty-six the municipal and police boundaries of the existing burgh shall be and are hereby extended to and shall include and comprehend the existing burgh and the district annexed and the burgh shall be comprised within the limits and boundaries set forth and described in the Schedule to this Order Provided that the description of the said boundaries shall be subject to the rules of construction in section 5 of the Representation of the People (Scotland) Act 1832. Extension of boundaries.

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Map of
burgh.

4. A map of the burgh of which eight copies have been signed by the Right Honourable the Earl of Liverpool chairman of the commissioners to whom this Order was referred shall within one month after the commencement of this Order be deposited as follows (that is to say) one copy in the office of the Secretary for Scotland one copy with the town clerk at his office one copy with the sheriff clerk at his office in Haddington one copy with the Board of Trade one copy with the Commissioners of Customs and Excise one copy with the Ministry of Agriculture and Fisheries one copy with the Electricity Commissioners and one copy in the office of the Minister of Transport. If there be any discrepancy between the said map and the description in the Schedule to this Order the said map shall be deemed to be correct and shall prevail.

District
annexed
disjoined
from
county.

5. From and after the fifteenth day of May one thousand nine hundred and twenty-six the district annexed shall be and the same is hereby for the purposes of this Order disjoined from the county.

Transfer-
ence of
works in
district
annexed.

6. All lands sewers drains and pipes within the district annexed belonging to or vested in the county council and all powers rights duties revenues and jurisdictions and obligations connected therewith shall from and after the fifteenth day of May one thousand nine hundred and twenty-six be and the same are hereby transferred from the county council and any district committee or other committee thereof and are hereby vested in the Town Council and the said property and rights revenues and obligations connected therewith shall subject to the provisions of this Order and to the provisions of the Police Acts and the Public Health Acts be held used managed and maintained with the same rights duties revenues jurisdictions and obligations attached thereto by the Town Council as when vested in and belonging to the county council or any district committee or other committee thereof and the Town Council may use such works hereby vested in them in connection with any works in the burgh.

Roads &c.
in district
annexed.

7. The roads streets bridges foot pavements and footpaths within the district annexed so far as the same are vested in the county council or other public authority shall from and after the fifteenth day of May one thousand nine hundred and twenty-six be transferred to

and vested in and be managed maintained and repaired by the Town Council along with and in the same way and manner and to the same extent as the roads streets bridges foot pavements and footpaths within the existing burgh and the county council or other public authority shall be freed and relieved of the repair and maintenance of all such roads streets bridges foot pavements and footpaths so far as within the district annexed in all time coming.

A.D. 1926.

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8. Nothing in this Order contained with respect to the vesting of roads streets sewers bridges foot pavements and footpaths within the district annexed shall prevent any superiors owners or other persons by whom or by whose predecessors the same shall have been formed from recovering the cost or any proportion of the cost of forming the same from feuars or other persons under any agreements made between the said parties respectively.

Saving
rights in
roads foot
pavements
footpaths
sewers and
drains.

9. Subject to the provisions of this Order all property heritable and moveable (including all means revenues and income of every description arising therefrom) belonging to or leviable within the existing burgh or to which the existing burgh is entitled or which is held or administered by any person for or on behalf of the community of the existing burgh or for the public ends and purposes thereof shall as from the fifteenth day of May one thousand nine hundred and twenty-six be and the same is hereby vested in and shall be held by the Town Council for the behoof and benefit of the burgh or as the case may be administered by such person for or on behalf of the community of the burgh or for the public ends and purposes thereof and all debts and obligations due by or exigible from the existing burgh shall be due by and exigible from the burgh and all debts due to the Town Council of the existing burgh by any person prior to the fifteenth day of May one thousand nine hundred and twenty-six may be demanded and recovered from such person and received and applied by the Town Council for behoof of the burgh.

Property
of existing
burgh
vested in
Town
Council.

10. Subject to the provisions of this Order all jurisdictions rights powers and authorities heretofore exercised or exercisable by the county council or any committee thereof or other local authority within or over the district annexed or any part or parts thereof (with

Powers of
local autho-
rities to
cease in
district
annexed.

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A.D. 1926. the exception of such jurisdictions rights powers and
— authorities (if any) as are presently exercised by the
county council or any committee thereof or other local
authority other than the Town Council within the
existing burgh or any part thereof) shall cease and
determine from and after the fifteenth day of May
one thousand nine hundred and twenty-six.

Electricity 11. From and after the commencement of this
area of Order the area of supply of electricity by the Town
supply. Council shall be the burgh.

As to water 12. The limits for the compulsory supply of water
supply of by the Town Council shall from and after the fifteenth
burgh. day of May one thousand nine hundred and twenty-six
be the burgh.

Assessments 13. Every rate charge or assessment (except such
on burgh. rates or assessments as are presently requisitioned for
or levied and collected by the county council or the
parish council within the existing burgh or any part
thereof) authorised to be requisitioned for or levied
and collected by the county council or other local
authority having jurisdiction over the district annexed
or any part or parts thereof but which shall not have
been actually imposed previous to the fifteenth day
of May one thousand nine hundred and twenty-six shall
on that date cease and determine within the district
annexed and thereafter all assessments and rates leviable
within the existing burgh by the Town Council shall
thenceforth be leviable on and within the burgh in the
same way and manner as the same are leviable on and
within the existing burgh. Provided always that the
Town Council shall on or before the fifteenth day of
January one thousand nine hundred and twenty-seven
pay to the county council such sum as may repre-
sent the proportion effeiring to the period between
the fifteenth day of May one thousand nine hundred
and twenty-six and the commencement of this Order
of the product of the assessments which the county
council would have levied in the district annexed for
the year ending Whitsunday one thousand nine hundred
and twenty-seven.

Public and 14. From and after the fifteenth day of May one
local Acts thousand nine hundred and twenty-six the Burgh Police
to apply to Acts and all other Public General Statutes and all local
extended
burgh.

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and private Acts and Orders which apply to the existing burgh and all byelaws regulations rules and orders made thereunder and the whole provisions powers and authorities of the Town Council and the magistrates under the said Acts and Orders shall extend and apply to the district annexed and may be exercised by the Town Council and the magistrates in the same manner and as fully in all respects within the district annexed as the same apply and may be exercised within the existing burgh.

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15. From and after the fifteenth day of May one thousand nine hundred and twenty-six the Town Council the magistrates and the Dean of Guild Court respectively shall have possess and may exercise over the burgh and the inhabitants thereof all the jurisdictions (civil and criminal) powers rights and authorities which the Town Council the magistrates and the Dean of Guild Court respectively of the existing burgh now have possess and exercise over the existing burgh and the inhabitants thereof whether at common law or by statute or otherwise including all powers of imposing levying and recovering rates assessments dues and charges and all rights privileges immunities and obligations at present enjoyed possessed by or incumbent on the inhabitants of the existing burgh shall extend and apply to the inhabitants of the burgh.

Powers of magistrates and Town Council &c. to apply to extended burgh.

16.—(1) Subject and without prejudice to any of the provisions of this Order the Town Council and the county council or either of them may make and carry into effect agreements with respect to the transfer of property from the county council to the Town Council and for settling and adjusting any claims or any doubt or difference arising in relation thereto.

Power to Town Council and county council to enter into agreements.

(2) The provisions of any such agreement shall be deemed to be within the powers of the Town Council and of the county council respectively and if and when made shall have and be carried into effect accordingly.

(3) Any difference or dispute arising as to such agreement or as to any other matter or thing in relation to the transference under this Order of the property of the county council shall be determined by an arbiter to be agreed upon or failing agreement to be appointed by

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A.D. 1926. the Secretary for Scotland on the application of any of
— the parties concerned.

As to
vesting all
property
transferred
to Town
Council.

17. All property transferred to or vested in the Town Council by virtue of this Order shall vest in them without the necessity of recording in the Register of Sasines any conveyance notarial instrument or notice of title or other deed or writing but for the purpose of enabling the Town Council to complete a title if thought fit to any property transferred to and vested in them by virtue of this Order by expeding a notarial instrument or notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such property in favour of the Town Council.

Parochial
arrange-
ments not
to be
affected.

18. The lands and heritages within the district annexed shall remain parts and portions of the parish of North Berwick within which they now lie and shall not be affected by any of the provisions of this Order in so far as regards the settlement relief or management of the poor the erection and maintenance of district lunatic asylums the payment of poor's rates or education rate or any burdens for purposes other than those for which the said lands and heritages will be assessed under the provisions of the Police Acts or any other public or local statutes presently affecting or which may hereafter affect the existing burgh and of this Order.

Adjustment
of indebted-
ness between
Town
Council and
county
council.

19. The financial adjustment as between the Town Council and the county council consequent upon the inclusion within the boundaries of the burgh of the district annexed shall be made upon the basis of the provisions of the Local Government (Adjustments) (Scotland) Act 1914 and in accordance with the rules contained in the schedule to that Act and section 50 of the Local Government (Scotland) Act 1889 as applied by section 96 of the Burgh Police (Scotland) Act 1903 shall apply and have effect on the extension of the boundaries of the existing burgh by this Order and any dispute or difference arising in connection with such adjustment shall be settled by arbitration by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary for Scotland on the application of the Town Council or the county council.

20. The Town Council in addition to any other powers of borrowing which they now have or may obtain may (a) for the purpose of the payment of any capital sum which may be paid under the provisions of the section of this Order whereof the marginal note is "Adjustment of indebtedness between Town Council and county council" and (b) for the purpose of paying the costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto borrow such money as may be necessary on the security of an assessment to be imposed in the same manner and along with and as part of the assessment for the maintenance and repair of highways leviable by the Town Council as local authority under the Roads and Bridges (Scotland) Act 1878 or of the Public Health General Assessment leviable under the Public Health (Scotland) Act 1897 or any Acts amending the said Acts and the Town Council may assign so much or such part as may be required of such assessment as security for the money which may be so borrowed under the provisions of this section. Provided (1) that money so borrowed for purpose (a) aforesaid shall be repaid in accordance with the provisions of the said Act of 1897 except that the repayment shall be completed within twenty-five years from the date or dates of borrowing and (2) that money so borrowed for purpose (b) aforesaid shall be repaid within five years from the commencement of this Order.

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 Borrowing
 and assess-
 ing power.

21. The Town Council shall continue to consist of the same number of members as at present and shall continue in office subject to the provisions of the Town Councils Acts and other statutes regulating the election of magistrates and councillors and the order of their retirement shall not be affected.

Continuance
 in office of
 Town
 Council.

22. All laws statutes jurisdictions powers privileges and usages now in force in relation to the district annexed in so far as inconsistent or at variance with the provisions of this Order are subject to the provisions of this Order hereby repealed.

Repeal of
 laws incon-
 sistent with
 this Order.

23. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Town Council to take use or in any

Crown
 rights.

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A.D. 1926. — manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of
Order.

24. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Town Council out of moneys borrowed by them under this Order for that purpose or any rates and assessments which they are authorised to levy.

The SCHEDULE referred to in the foregoing Order.

(Referred to in the section of the Order of which the marginal note is "Extension of boundaries.")

BOUNDARIES OF THE BURGH.

The area lands and heritages situated in the parish of North Berwick in the county of East Lothian bounded by a line commencing at the point at which the boundary line between the parishes of North Berwick and Dirleton reaches the shore of the Firth of Forth at low-water mark being the north-westmost point of the existing burgh boundary thence eastwards along low-water mark till it reaches the north-eastmost point of the existing burgh boundary thence southwards for a distance of 1,960 feet or thereabouts till it reaches the road leading from North Berwick to Dunbar thence westwards along the north side of the said road for a distance of 540 feet or thereabouts thence northwards along the line of a fence between the fields numbered 268 and 270A on the 25-inch Ordnance survey map of Haddingtonshire edition of 1907 for a distance of 500 feet or thereabouts thence westwards along the fences and walls on the south side of the Burgh Golf Links till it reaches the west side of the footpath on the west side of Rhodes Farm thence in a south-easterly direction along the west side of the said footpath and along

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the west side of the road in continuation thereof until it reaches the north side of the road leading from North Berwick to Dunbar thence in a westerly direction along the north side of the said last-mentioned road for a distance of 1,188 feet or thereabouts thence westwards along the south side of the said road leading from North Berwick to Dunbar until it reaches the east side of the road leading from North Berwick to the Heugh thence in a south-easterly direction along the east side of the last-mentioned road for a distance of 208 feet or thereabouts thence westwards along the wall and fence forming the northern boundary of the Heugh Farm until it reaches Mill Burn thence westwards along the centre of the said burn for a distance of 1,315 feet or thereabouts thence northward along the line of a hedge between the fields numbered 294 and 287 on said Ordnance survey map and thereafter following the line of said hedge until a point 160 feet or thereabouts south of the fence forming the south boundary of the road known as the New Road is reached thence westward along a line parallel to the said last-mentioned fence until the existing burgh boundary is reached thence westward and northward along the line of the existing boundary to the point of commencement.

A.D. 1926.

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